

Mukesh Singh Chaturvedi v. State of U.P. & 2 Others

Allahabad High Court · Division Bench · 3 July 2014 · 2014 SCC OnLine All 9290 · Writ - C No. 33847 of 2014 · **Writ petition disposed of by consent with instalment directions**

HEADNOTE

A billing grievance must be raised as a proper objection under Clause 6.5 of the U.P. Electricity Supply Code, 2005. Where the Court's earlier order had relegated the consumer to his Clause 6.5 remedy, but the 'objection' he filed did not conform to Clause 6.5 — it mentioned no details of any amount deposited and no specific objection to the bill — it could not be treated as a Clause 6.5 objection, and the authority could not be blamed for not deciding it. The consumer then, without disputing the correctness of the bill, agreed to pay in instalments; the Court disposed of the petition directing deposit of half the arrears within a month (with restoration of supply within 24 hours of the first instalment) and the balance within a further month, subject to payment of regular bills.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.5

A Clause 6.5 objection must be in proper form to require decision

QUESTION

Was the licensee obliged to decide an 'objection' that lacked the particulars required by Clause 6.5?

HOLDING

No. An objection that does not mention the details of any amount deposited or set out a specific objection to the bill does not conform to Clause 6.5 and cannot be treated as a Clause 6.5 objection; the authority cannot be blamed for not deciding it. As the consumer then agreed to pay in instalments without disputing the bill, the Court disposed of the petition with instalment directions. ¶ (order)

LIMITING FACTS

Earlier writ (30729/2014) relegated the consumer to Clause 6.5; the objection filed 11.6.2014 lacked the required particulars; the connection had been disconnected.

PRINCIPLE TAGS

clause-6.5-objection-must-be-in-proper-form

A billing objection triggers the licensee's duty to decide it only if it conforms to Clause 6.5 (particulars of amount deposited and the specific objection to the bill); a non-conforming representation need not be decided. ¶ (order)

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — CORRECTNESS OF THE DISPUTED BILL

Not decided; the consumer chose to pay in instalments without disputing the bill, so the merits were not adjudicated. ¶ (order)